

	Plaintiffs move for relief pursuant to Code of Civil Procedure section 473, subdivision (a)(1). “Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal. App. 4th 1435, 1448.) Plaintiffs provided a sufficient reason for not including the allegations in the SAC in the First Amended Complaint (FAC), namely that discovery taken and responses received after the filing of the FAC, as well as the final report of the receiver, produced facts supporting the new causes of action against Intervenor Purchasing 411 d/b/a Royalty Distribution (Royalty). Although Plaintiffs had previously alleged Royalty was not a bona fide purchaser of the subject goods, Plaintiffs stated they did not have all the facts to support the present allegations until after the FAC had been filed. As for Royalty’s claims it will be prejudiced by the amendments due to loss of evidence, there is nothing to suggest Plaintiffs encouraged Royalty to avoid participating in discovery prior to now, but rather it was the choice of Royalty not to participate normally in discovery to save costs. This is not sufficient to show prejudice to overcome the motion. The motion is granted. Plaintiffs are directed to file and serve the SAC no later than May 20, 2026. Any responsive pleadings are to be filed per code. Parties should appear at the hearing to discuss potentially continuing the current trial date. Plaintiffs shall give notice.
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303	<i>Cipher Entertainment LLC vs. Optimize Digital LLC</i>	The motion to be relieved as counsel of record for plaintiff Cipher Entertainment LLC filed by Marc A. Collins of Collins & Khan LLC is DENIED. There is a discrepancy in the proofs of service. Moving counsel's declaration states the motion papers were served on the client by mail, but the proofs of service show only service by email. Moreover, "[i]f the notice is served on the client by electronic service...it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (C.R.C. rule 3.1362(d)(2).) Moving counsel's declaration contains no such statement. As to the OSC re: dismissal for failure to proceed, plaintiff failed to file a declaration explaining why the court should not dismiss the action for failure to proceed. On the OSC re: dismissal for failure to serve, Jeffers defendant has still not been served 2.5 years into this case. The court dismisses the action without prejudice for failure to proceed. Moving counsel shall give notice.
304	<i>Kellner vs. FCA US, LLC</i>	The motion of plaintiffs Brian Kellner and Alyssa Kellner (collectively referred to as Plaintiffs) for an order to strike and/or tax costs of defendant FCA US, LLC (Defendant) is GRANTED IN PART and DENIED IN PART. Filing and motion fees and court reporter fees are expressly allowed as costs under Code of Civil Procedure section 1033.5. (See Code Civ. Proc. § 1033.5(a)(1), (11).) Plaintiffs failed to meet their burden of demonstrating the costs to be unreasonable or unnecessary. (See <i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29.) The charges for "Other" costs